

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0003730

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: NANCY DREW, ET AL

vs.

DEFENDANT: MARY CROWLEY

NATURE OF PROCEEDINGS: MOTION – CONSOLIDATE

RULING

Plaintiff Nancy Drew’s (“Plaintiff” or “Ms. Drew”) motion to consolidate is GRANTED. (Code Civ. Proc., § 1048.)

I. BACKGROUND

This is an elder abuse action. Plaintiff originally filed this case through her guardian ad litem, her brother, Robert Drew. (Complaint, ¶ 2.) Defendant Mary Crowley (“Defendant”) is a former neighbor and acquaintance of Nancy Drew. (*Id.* at ¶ 3.)

The complaint alleges that Plaintiff executed a trust in 1999 and a will in 2014. (Complaint, ¶¶ 10-11.) The will gave the entirety of her estate to the trust and named her brother, Robert, the executor of her estate. (*Id.* at ¶ 13.) Plaintiff subsequently named her brother the successor trustee of the trust. (*Id.* at ¶ 17.) These documents allegedly did not mention Defendant. (*Id.* at ¶ 18.)

At the time this action commenced in 2024, Plaintiff was 85 years old and had allegedly been suffering from cognitive impairment resulting from Alzheimer’s disease for a few years. (Complaint, ¶¶ 9, 20.) The complaint asserts that Plaintiff had lacked the mental capacity to make decisions on her own behalf since approximately early April 2023. (*Id.* at ¶ 21.)

Plaintiff alleges that beginning around that time, Defendant began to exercise undue influence over Plaintiff to induce her to make Defendant a beneficiary of her estate. According to the complaint, Defendant isolated Plaintiff from her friends, family, and attorney; demanded that she not communicate with Robert Drew. The complaint alleges that Plaintiff fired the attorney who had drawn up her initial estate plans, and that she retain an attorney of Defendant’s choosing; and caused her to change her longstanding estate plan to make Defendant a beneficiary. (Complaint, ¶ 23.)

Plaintiff asserts claims for statutory elder abuse, conversion, and various other causes of action all arising out of Defendant's allegedly isolating and taking advantage of Plaintiff. Defendant responded by filing a cross-complaint against Robert Drew accusing him of committing financial elder abuse against Plaintiff. The cross-complaint also seeks declaratory relief in the form of an order establishing that Robert Drew has no interest in Plaintiff's estate, as her revised estate planning documents are valid. (Cross-Complaint, ¶ 27.)

Plaintiff passed away in July 2025. (Lieberman Dec., ¶ 7.) Robert Drew and another petitioner, Cindi Baker, then commenced a probate proceeding challenging the validity of Plaintiff's revised estate planning documents. The First Amended Petition in the probate action¹ seeks an order invalidating Plaintiff's 2024 will and the 2024 restatement of her trust on the basis that Defendant exacted these documents from Plaintiff through undue influence amounting to elder abuse. (See Pltf.'s RJN, Ex. 1, ¶¶ 3, 67, 87-90.)

II. LEGAL STANDARD

"When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay." (Code Civ. Proc., § 1048, subd. (a).) "Whether separate actions shall be consolidated for trial . . . is matter within the discretion of the trial court." (*McArthur v. Shaffer* (1943) 59 Cal.App.2d 724, 727.) "[A] trial court granting consolidation must determine whether the consolidation will be for all purposes or will be limited." (*Committee for Responsible Planning v. City of Indian Wells* (1990) 225 Cal.App.3d 191, 196, fn. 5.)

III. DISCUSSION

Under California Rule of Court, rule 3.350, a notice of motion to consolidate must list all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record; must contain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first; and must be filed in each case sought to be consolidated. (Cal. Rule of Court, rule 3.350(a).) Plaintiff's notice of motion does not comply with any aspect of this rule. Judge Chou, who is presiding over the probate matter, has admonished Plaintiff for failure to comply with Rule 3.350 on two prior occasions. (See July 16, 2026, Probate Minutes in Case No. PR0001434; August 20, 2026, Probate Minutes in the same.) Compliance with this rule is required for the clear purpose of ensuring that all parties to both cases have notice of the attempt to consolidate the cases. One of the petitioners in the probate case, Cindi Baker, is not a party to the civil case, and but for the identity of her counsel, she would have no reason to know of the motion to consolidate filed solely in this civil action.

Because Robert Drew and Cindi Baker are represented by the same attorney in the probate matter, and that attorney is the attorney that filed this motion to consolidate in the civil action. Ms. Baker is represented by the same attorney who is litigation both the probate and civil matters. She has notice of this action.

¹ Plaintiff's request for judicial notice of this material is granted. (Evid. Code, § 452, subd. (d).)

Plaintiff's complaint, Defendant's cross-complaint, and the probate action – involve numerous common questions of law and fact, which will be resolved by an analysis of the same evidence. (See Code Civ. Proc., § 1048, subd. (a); see also *Todd-Stenberg v. Dalon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 979 [trial court did not err in ordering consolidation where a large portion of trial would involve common issues with common proof].) These issues include, but are not limited to, the progression of Plaintiff's illness and whether she had the legal capacity required to devise property; Defendant's relationship with Plaintiff; and Defendant's involvement in Plaintiff's changing her estate plan. (Lieberman Dec., ¶ 9.)

Plaintiff's claims in this case and the claims at issue in the probate action overlap. In her motion for judgment on the pleadings in this action, Defendant compared the probate matter to this case and stated, "[T]he core legal and factual issues in both cases, including Nancy Drew's mental capacity, the validity of estate planning instruments, and allegations of financial elder abuse, substantially overlap. The civil proceeding has become . . . legally duplicative of the pending probate matter." (Def.'s Mem. in Supp. of Mot. for Judgment on the Pleadings [filed February 27, 2026], p. 4.) As Plaintiff puts it, the civil action and the probate action "present two procedural vehicles through which the Court is being asked to determine the same controversy." (Memorandum, p. 5.) As a result, consolidating these cases will have efficiency benefits for both the parties and the Court.

Defendant's argument that she is prejudiced by case consolidation is not compelling.

On August 7, the Court granted Defendant's motion for judgment on the pleadings in this action with leave to amend on the basis that Robert Drew, the late Ms. Drew's guardian ad litem, does not have standing to prosecute her claims now that she has died. (Aug. 7, 2026, Order, p. 2.) The Court noted that in this state, a guardian ad litem is not a party to an action – he is merely the representative of record of a party. (*Ibid.*) Upon the ward's death, the guardian ad litem loses standing to prosecute the case and a proper party must be substituted into the action through the procedure set forth in Code of Civil Procedure, section 377.30 *et seq.* (*Ibid.*) When Plaintiff died, Robert Drew lost standing to prosecute this case on her behalf as her guardian ad litem. No plaintiff has yet been substituted into this case to replace the late Ms. Drew, and no amended complaint has yet been filed.

Defendant argues that because there is currently no proper plaintiff for purposes of Ms. Drew's complaint, the motion must be denied for want of a plaintiff qualified to invoke the legal process. However, whether he has standing to prosecute the late Ms. Drew's claims or not, Robert Drew is a party in both this action and the probate action. He is a cross-defendant in this action, as Defendant has filed a cross-complaint against him as an individual, and he is a petitioner in the probate action. Under these circumstances, the Court sees no reason why he would not be entitled to seek consolidation of these cases. Allowing him to do so does not permit him to proceed as a plaintiff on the merits of Ms. Drew's claims against Defendant without following the required procedure for substitution.

Because the parties in the two actions are not identical due to the presence of Ms. Baker in the probate action, consolidation shall be for purposes of trial only. (See *Hamilton v. Asbestos Corp., Ltd.* (2000) 22 Cal.4th 1127, 1147 [discussing the difference between the two types of

consolidation, consolidation for purposes of trial only and consolidation for all purposes]; *Sanchez v. Superior Court* (1988) 203 Cal.App.3d 1391, 1396 [“[C]omplete consolidation . . . may be utilized where the parties are identical and the causes could have been joined[.]”]; Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2026) § 12:341.1.) The lead case shall be the probate matter.

Plaintiff’s motion to consolidate with the related probate matter is GRANTED under Code of Civil Procedure section 1048. Despite earlier Rule 3.350 notice deficiencies, all parties have notice through common counsel. The cases involve common issues concerning capacity, undue influence, and estate planning documents; consolidation will promote efficiency. Consolidation is for trial only because the parties are not identical; the probate matter is the lead case.

Parties must comply with Marin County Superior Court Local Rule 2.10(A)–(B). A party seeking oral argument must notify the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. on the court day before the hearing. Notice may be provided by telephone or in person; direct contact with counsel or the parties is not required. Absent timely notice to the Court and all parties, no oral argument will be permitted except by order. If no party properly requests oral argument, the tentative ruling becomes the order of the Court..

***IT IS ORDERED* Evidentiary hearings are in person in Department L. Routine appearances may be made by video using the link on the Court’s website. When your case is called, turn on your camera and ensure the appearing party or lawyer is properly identified on screen.**

***FURTHER ORDERED* Parties are responsible for maintaining a reliable connection and being available throughout the remote hearing. If a party’s connection is inadequate, the Court may proceed in that party’s absence. Participants determined to be driving during the hearing will be removed from the virtual courtroom. (Yes, this happens).**

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/18/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0005099

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: NEXTECH SYSTEMS INC.

vs.

DEFENDANT: PLASTIC SURGERY
SPECIALISTS, INC. A CALIFORNIA
CORPORATION

NATURE OF PROCEEDINGS: MOTION – SANCTIONS – DISCOVERY FACILITATOR
PROGRAM

RULING

Pursuant to Marin County Rule, Civil 2.13B, on September 9, 2026, Scott Slomiack, Esq. was appointed to preside as Discovery Facilitator for Plaintiff's Motion for terminating sanctions for failure to comply with prior orders regarding on discovery entered on May 1, 2026.

By prior order, the Court appointed a Discovery Facilitator under Marin County Rule Civ. 2.13B. Considering the timing of that appointment, the hearing on Plaintiff's motion for terminating sanctions is CONTINUED to October 16, 2026, at 1:30 p.m. The parties must comply with MCR Civ. 2.13H, including timely filing a Declaration of Non-Resolution (no more than three pages) summarizing the remaining disputed issues and each party's contentions

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are driving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).